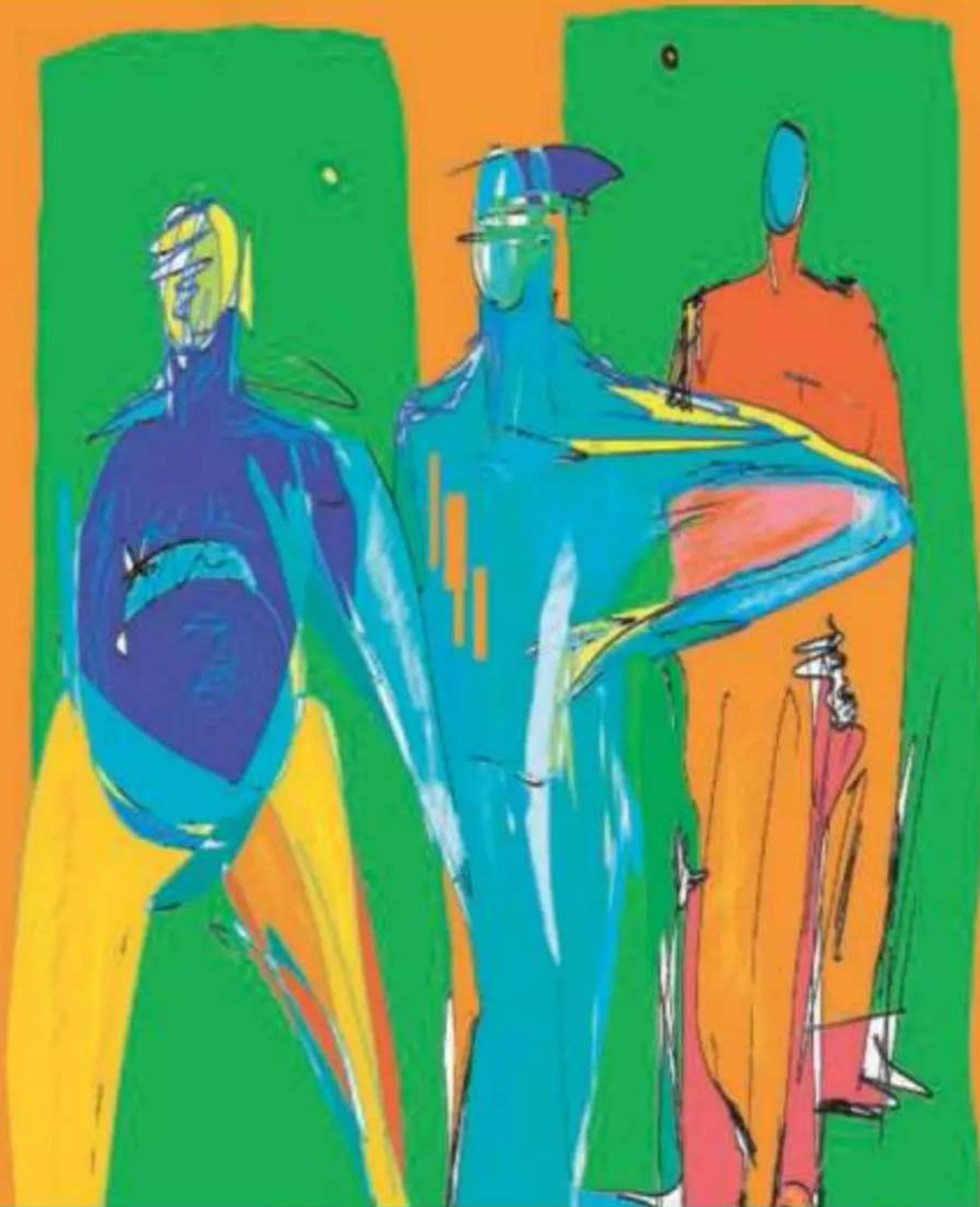


HUMAN RESOURCE MANAGEMENT

TWELFTH EDITION

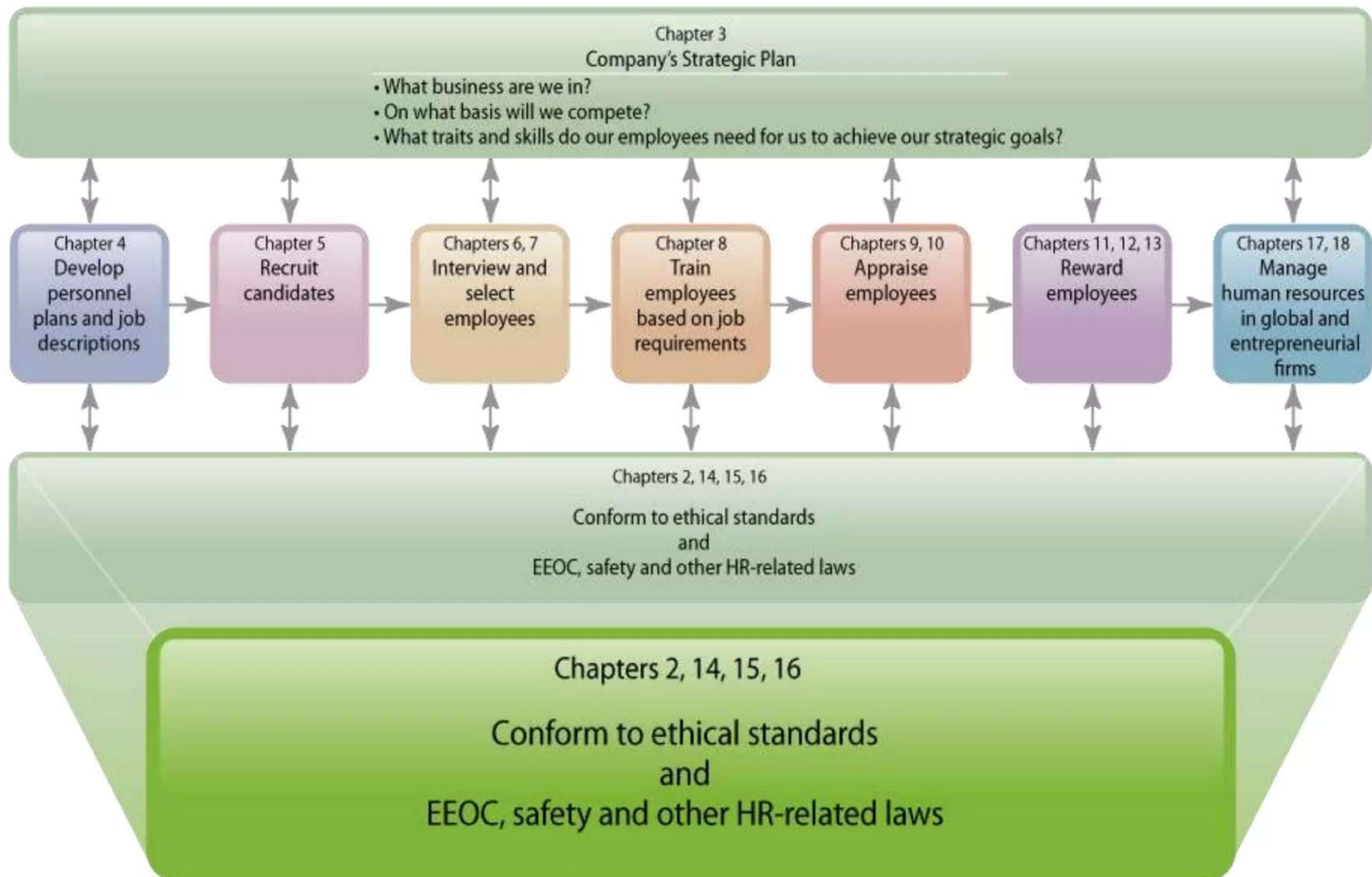


Chapter 2

Equal Opportunity and the Law

Part One | Introduction

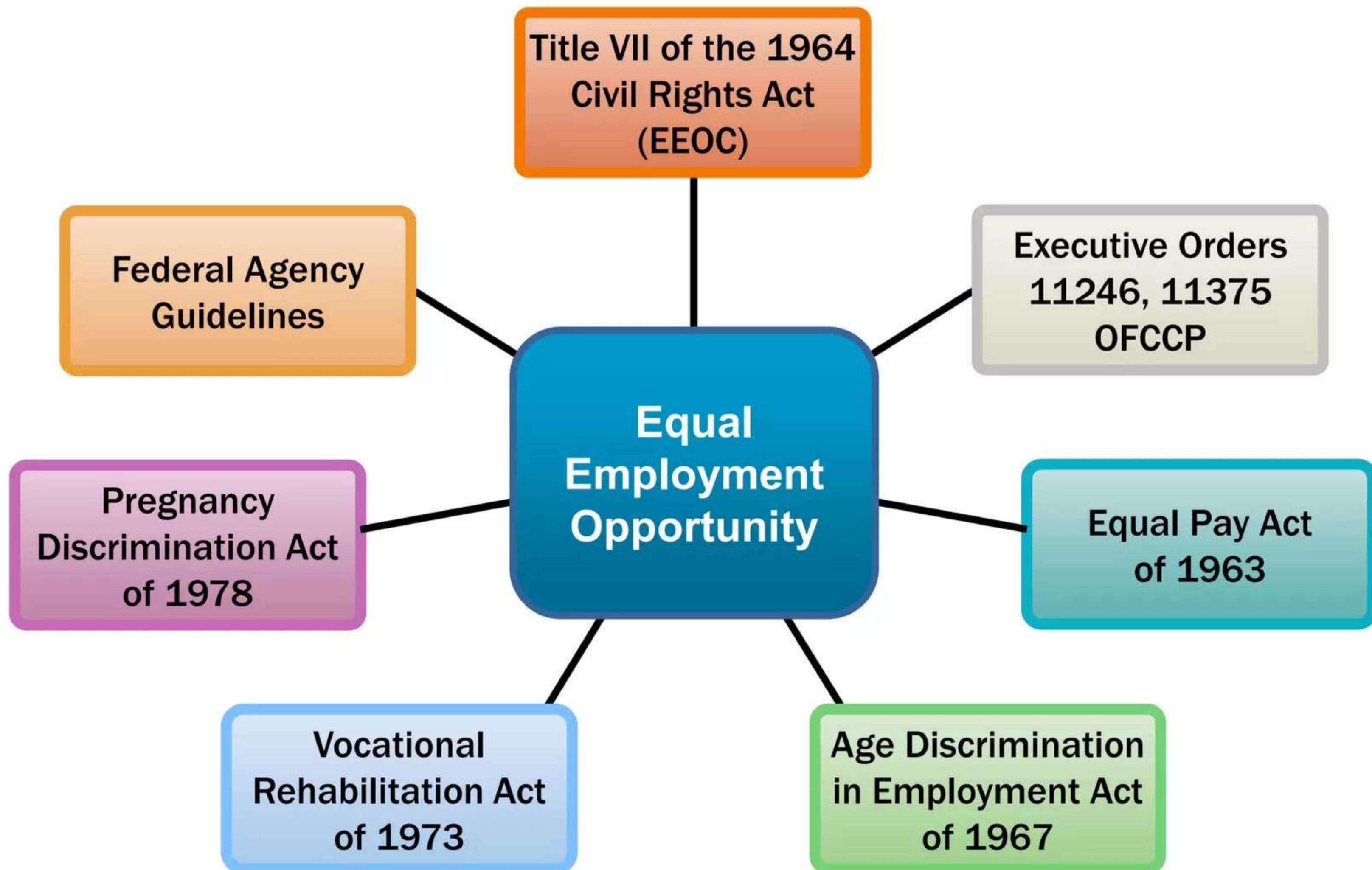
WHERE WE ARE NOW...



LEARNING OUTCOMES

1. Explain the importance of and list the basic features of Title VII of the 1964 Civil Rights Act and at least five other equal employment laws.
2. Explain how to avoid and deal with accusations of sexual harassment at work.
3. Define adverse impact and explain how it is proved.
4. Explain and illustrate two defenses you can use in the event of discriminatory practice allegations.
5. Cite specific discriminatory personnel management practices in recruitment, selection, promotion, transfer, layoffs, and benefits.
6. List the steps in the EEOC enforcement process.
7. Discuss why diversity management is important and how to institutionalize a diversity management program.

Equal Employment Opportunity 1964-1991



Title VII of the 1964 Civil Rights Act

- Employer cannot discriminate based on race, color, religion, sex, or national origin.
 - Applies to public and private employers with 15 or more employees.
- Unlawful employment practices for an employer:
 - To fail or refuse to hire or to discharge an individual because of the individual's race, color, religion, sex, or national origin.
 - To limit, segregate, or classify employees or applicants by their race, color, religion, sex, or national origin such that they would be deprived employment opportunities or employment status.
- Equal Employment Opportunity Commission

Equal Employment Opportunity Commission (EEOC)

- Established by Title VII of the 1964 Civil Rights Act.
- Comprised of five members appointed by the President for five-year terms; approved by the Senate.
- Administers and enforces civil rights employment law.
- Issues federal guidelines for EEO procedures to be followed by employers.
- Receives and investigates job discrimination complaints.

Early Court Decisions Regarding Equal Employment Opportunity

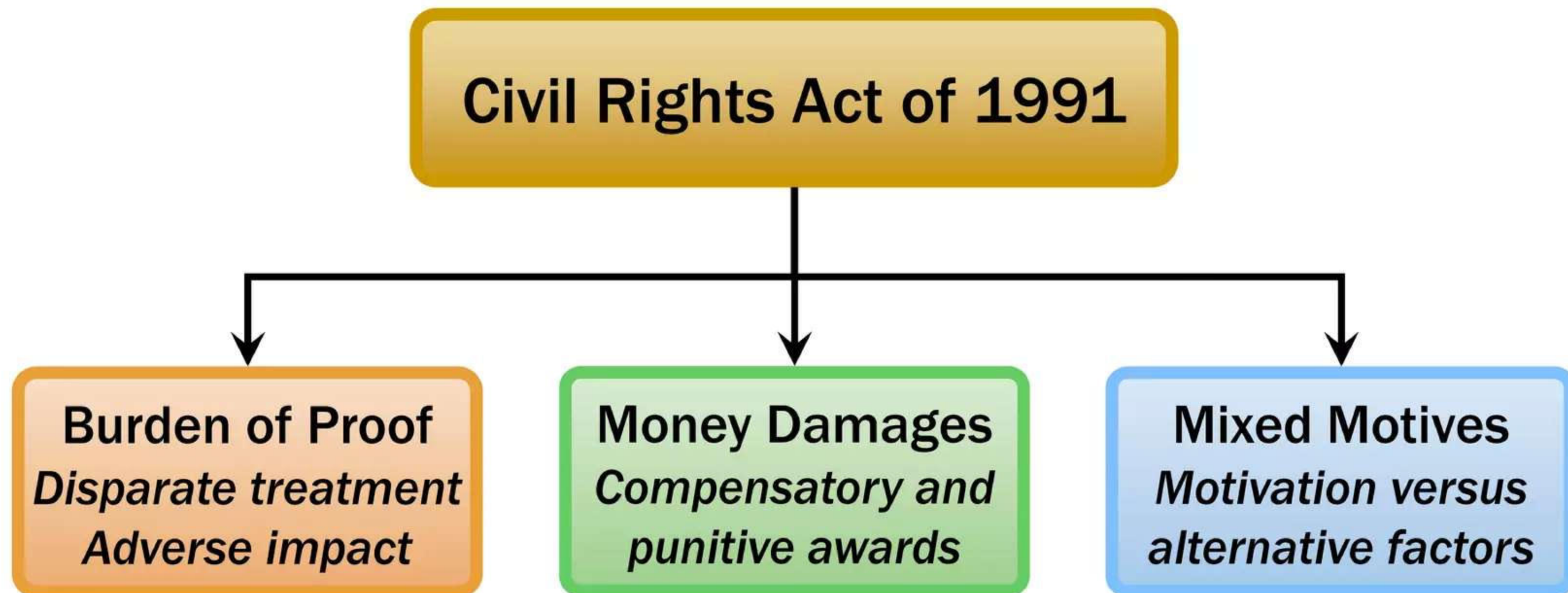
Griggs v. Duke Power Company

- 1 → Burden of job-related proof on employer.
- 2 → Employer's nondiscriminatory intent is irrelevant.
- 3 → "Fair in form" practice must also be nondiscriminatory.
- 4 → *Business necessity* is a defense for adverse impact.
- 5 → Test or practice must be related to job performance.

Early Court Decisions Regarding Equal Employment Opportunity (cont'd)

- *Albemarle Paper Company v. Moody*
 - If a test is used to screen candidates, then the job's specific duties and responsibilities must be analyzed and documented.
 - The performance standards for the job should be clear and unambiguous.
 - Federal (EEOC) Guidelines on validation are to be used for validating employment practices.

Equal Employment Opportunity 1990-91-present



Equal Employment Opportunity 1990-91-present (cont'd)

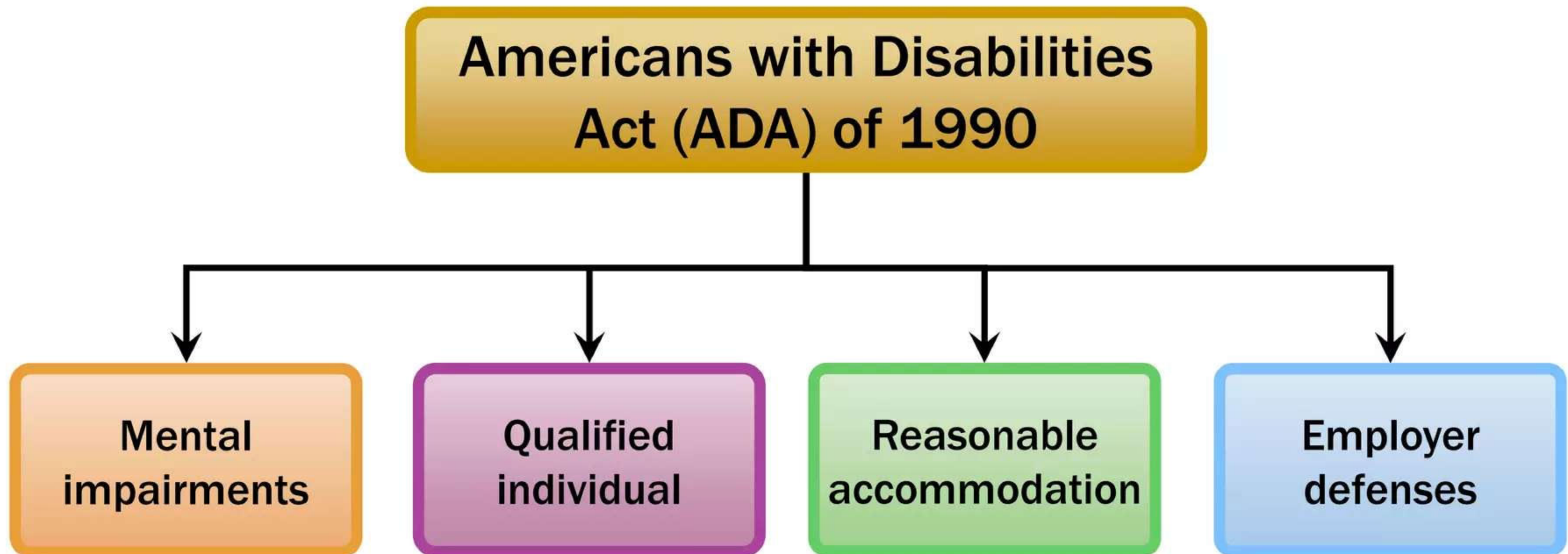


FIGURE 2–1 Examples of How to Provide Reasonable Accommodation

1. *Follow ADA Accessibility Guidelines*, such as regarding
 - Protruding Objects.
 - Ground and Floor Surfaces
 - Curb Ramps
 - Platform Lifts (Wheelchair Lifts)
 - Doors (width, height of door handles, and so on)
 - Drinking Fountains and Water Coolers
 - Water Closets
2. *Modify Workplace Policies*, such as regarding
 - Eating at the work site
 - Hours of work
 - Leave and attendance
3. *Use Technology*, for example,
 - Employees with *mobility or vision impairments* may benefit from voice recognition software.
 - Word prediction software suggests words based on context with just one or two letters typed.
 - Real-time translation captioning enables employees to participate in meetings.
 - Vibrating text pagers notify employees when messages arrive.
 - Arizona created a disability-friendly Web site, “Arizona@YourService,” to help link prospective employees and others to various agencies.

Employer Obligations Under ADA

- An employer must make a reasonable accommodation for a qualified disabled individual unless doing so would result in undue hardship.
- Employers are not required to lower existing performance standards or stop using tests for a job.
- Employers may ask pre-employment questions about essential job functions but can not make inquiries about disability.
- Medical exams (or testing) must be job related.
- Employers should review job application forms, interview procedures, and job descriptions for illegal questions and statements.
- Employers should have up-to-date job descriptions that identify the current essential functions of the job.

Employers and ADA

- Employers are not required to tolerate misconduct or erratic performance, even if the behaviors can be attributed to the disability.
- Employers do not have to create a new job for the disabled worker nor reassign that person to a light-duty position for an indefinite period, unless such a position exists.
- Employers should not treat employees as if they are disabled so that they will not be “regarded as” disabled and protected under the ADA.

The “New” ADA Amendments Act of 2008 (ADAAA)

- ADAAA expanded the list of major life activities making it easier for an employee to show his or her disability as “limiting” in his or her ability to engage in a major life activity.
- Under ADAAA, an employee is considered disabled even if he or she has been able to control his or her impairments through medical or “learned behavioral” modifications.

FIGURE 2–2 ADA Guidelines For Managers And Employers

- Do not deny a job to a disabled individual if the person is qualified and able to perform the essential job functions.
- Make a reasonable accommodation unless doing so would result in undue hardship.
- You need not lower existing performance standards or stop using tests for a job. However, those standards or tests must be job related and uniformly applied to all employees and candidates.
- Know what you can ask applicants. In general, you may not make preemployment inquiries about a person's disability before making an offer. However, you may ask questions about the person's ability to perform essential job functions.
- Review job application forms, interview procedures, and job descriptions for illegal questions and statements about health, disabilities, medical histories, or previous workers' compensation claims.
- Itemize essential job functions in job descriptions. In ADA legal actions, a central question will be what are the essential functions of the job?
- Do not allow misconduct or erratic performance (including absences and tardiness), even if that behavior is linked to the disability.

Other Employment Acts and Laws

- Genetic Information Nondiscrimination Act of 2008 (GINA)
 - Prohibits discrimination by health insurers and the use of genetic information by employers in employment.
 - Prohibits the intentional acquisition of genetic information about applicants and employees.
 - Imposes strict confidentiality requirements.
- State and Local Equal Employment Opportunity Laws
 - Cannot conflict with federal law but can extend coverage to additional protected groups.
 - The EEOC can defer a discrimination charge to state and local agencies that have comparable jurisdiction.

TABLE 2–1 Summary of Important Equal Employment Opportunity Actions

Action	What It Does
Title VII of 1964 Civil Rights Act, as amended	Bars discrimination because of race, color, religion, sex, or national origin; instituted EEOC.
Executive orders	Prohibit employment discrimination by employers with federal contracts of more than \$10,000 (and their subcontractors); establish office of federal compliance; require affirmative action programs.
Federal agency guidelines	Indicate guidelines covering discrimination based on sex, national origin, and religion, as well as employee selection procedures; for example, require validation of tests.
Supreme Court decisions: <i>Griggs v. Duke Power Co.</i> , <i>Albemarle v. Moody</i>	Rule that job requirements must be related to job success; that discrimination need not be overt to be proved; that the burden of proof is on the employer to prove the qualification is valid.
Equal Pay Act of 1963	Requires equal pay for men and women for performing similar work.
Age Discrimination in Employment Act of 1967	Prohibits discriminating against a person age 40 or over in any area of employment because of age.
State and local laws	Often cover organizations too small to be covered by federal laws.
Vocational Rehabilitation Act of 1973	Requires affirmative action to employ and promote qualified handicapped persons and prohibits discrimination against handicapped persons.

TABLE 2–1 Summary of Important Equal Employment Opportunity Actions (cont'd)

Action	What It Does
Pregnancy Discrimination Act of 1978	Prohibits discrimination in employment against pregnant women, or related conditions.
Vietnam Era Veterans' Readjustment Assistance Act of 1974	Requires affirmative action in employment for veterans of the Vietnam war era.
<i>Ward Cove v. Antonio</i>	Made it more difficult to prove a case of unlawful discrimination against an employer.
Americans with Disabilities Act of 1990	Strengthens the need for most employers to make reasonable accommodations for disabled employees at work; prohibits discrimination.
Civil Rights Act of 1991	Reverses various U.S. Supreme Court decisions; places burden of proof back on employer and permits compensatory and punitive money damages for discrimination.
ADA Amendments Act of 2008	Makes it easier for employee to show that his or her disability "substantially limits" a major life function.
Genetic Information Nondiscrimination Act	Signed into law in May 2008, this prohibits discriminating against employees and applicants based on their genetic information.

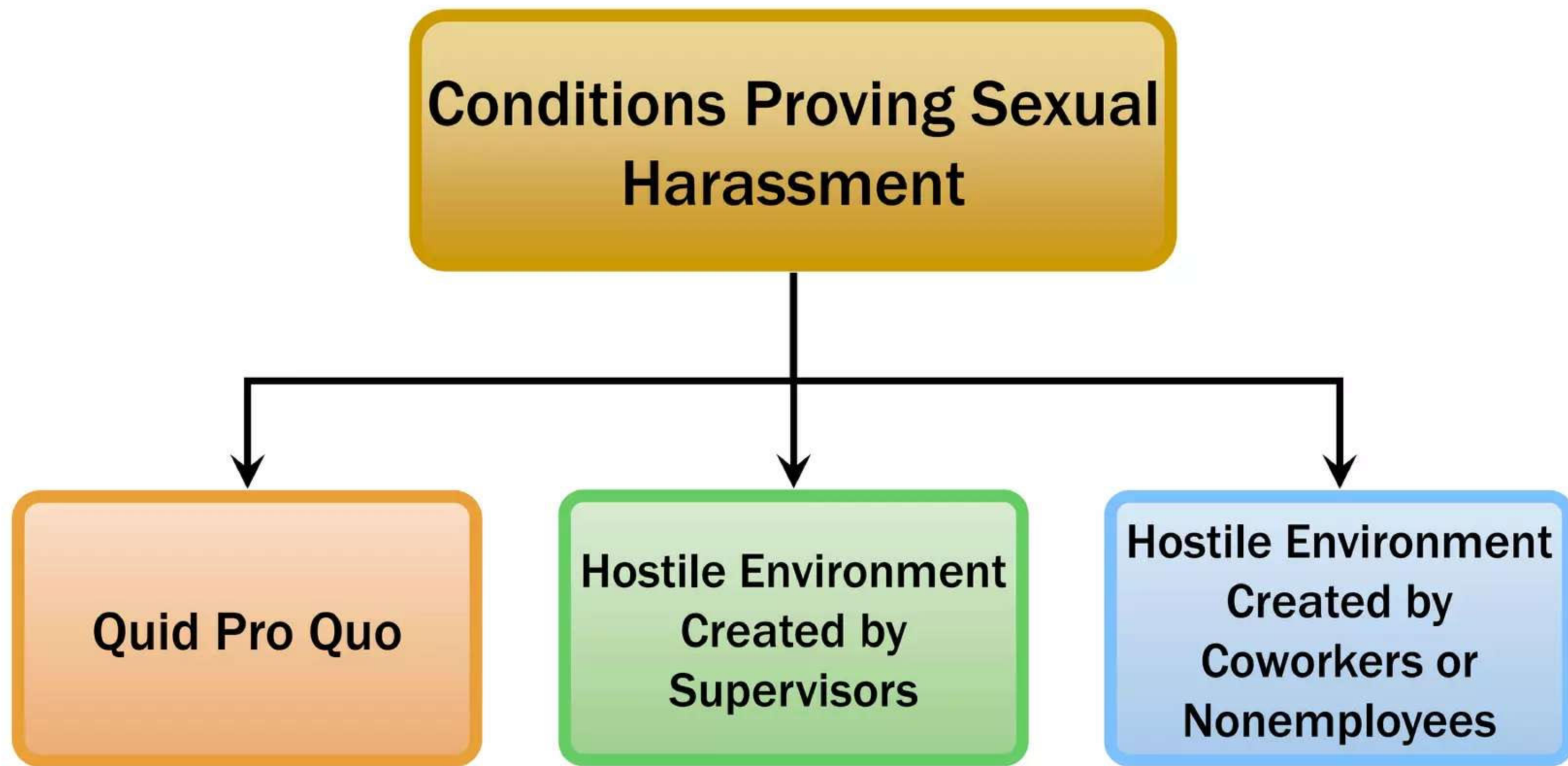
Sexual Harassment

- Sexual Harassment under Title VII
 - Harassment on the basis of sex that has the purpose or effect of substantially interfering with a person's work performance or creating an intimidating, hostile, or offensive work environment.
 - ❖ Employers have an affirmative duty to maintain workplaces free of sexual harassment and intimidation.
- Federal Violence Against Women Act of 1994
 - A person who commits a violent crime motivated by gender is liable to the party injured.
- When Is the Work Environment "Hostile"?
 - How frequent and/or severe was the discriminatory conduct?
 - Was it physically threatening, humiliating, or offensive?
 - Did it unreasonably interfere with the employee's work?
 - Did the employee perceive the environment as hostile?

What Is Sexual Harassment?

- EEOC guidelines define sexual harassment as:
 - Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature that takes place under any of the following conditions:
 1. Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment.
 2. Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual.
 3. Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment.

Proving Sexual Harassment



Sexual Harassment: Court Decisions

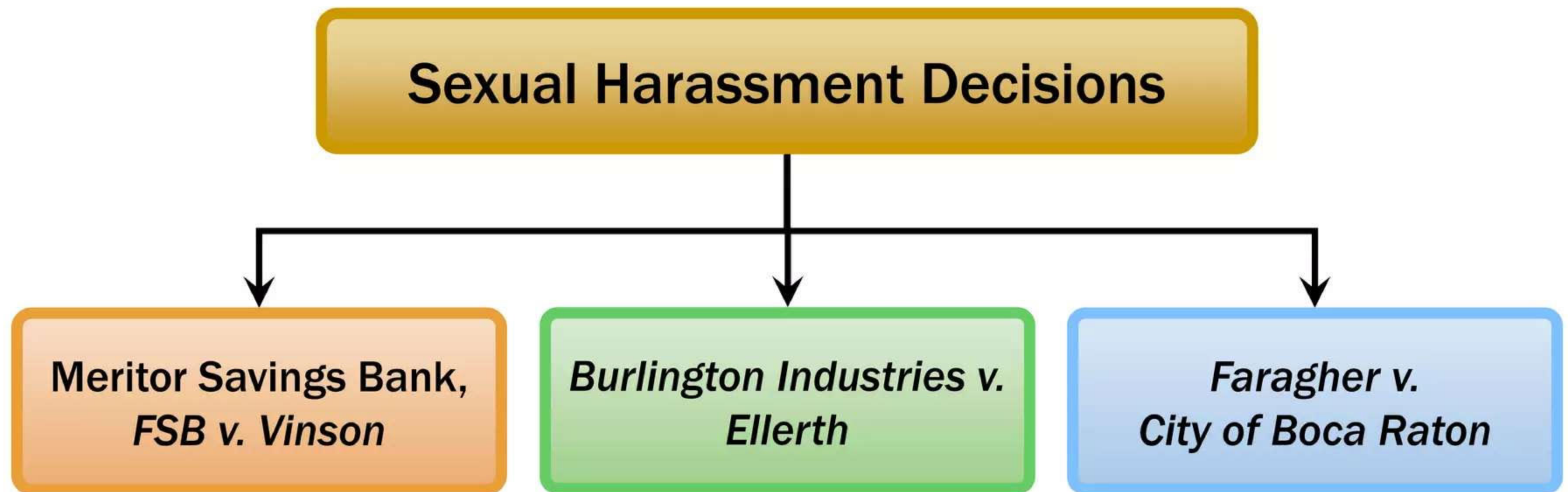


FIGURE 2–3 HR in Practice: What Employers Should Do to Minimize Liability in Sexual Harassment Claims

- *Take all complaints* about harassment seriously.
- *Encourage* the victim to inform the harasser directly that the conduct is unwelcome and must stop, and to use any employer complaint mechanism available.
- *Issue* a strong policy statement condemning such behavior. It should clearly describe the prohibited conduct, assure protection against retaliation, describe a complaint process that provides confidentiality, and provide accessible avenues of complaint and prompt, thorough, impartial investigation and corrective action.
- *Inform* all employees about the policy and of their rights under the policy.
- *Take steps* to prevent sexual harassment from occurring. For example, communicate to employees that the employer will not tolerate sexual harassment, and take immediate action when someone complains.
- *Establish* a management response system that includes an immediate reaction and investigation.
- *Train* supervisors and managers to increase their awareness of the issues.
- *Discipline* managers and employees involved in sexual harassment.
- *Keep thorough records* of complaints, investigations, and actions taken.
- *Conduct* exit interviews that uncover any complaints and that acknowledge by signature the reasons for leaving.
- *Re-publish* the sexual harassment policy periodically.
- *Encourage* upward communication, for instance, through periodic written attitude surveys.
- *Do not* retaliate against someone who files a harassment (or other EEO) complaint.

FIGURE 2–4 Online form to facilitate filing report of harassment.

[Print Form](#)

The University of Iowa
Office of Equal Opportunity and Diversity
CONFIDENTIAL REPORT OF INFORMAL+ SEXUAL HARASSMENT COMPLAINT RESOLUTION
Please complete this form and submit it to the Office of Equal Opportunity and Diversity, 202 Jessup Hall,
As soon as reasonably possible after resolution of the complaint
Due to confidentiality considerations, please do not e-mail these forms.

Date of Incident	Date complaint received
------------------	-------------------------

College/Organizational Unit	Department	Today's Date
Name of Individual Completing Report	Title	Campus Telephone #

Consistent with the UI Policy on Sexual Harassment, if the person charged in the complaint has been informed of the existence of the complaint, all parties' names shall be disclosed; if the person charged has not been informed of the existence of the complaint, the parties' names shall not be disclosed.

Name of Complainant(s)

Department	Gender ☐ Male ☐ Female ☐ Unknown
Status of Complainant(s): ☐ Academic or Administrative Officer ☐ Faculty ☐ Professional & Scientific ☐ Merit ☐ Student Employee ☐ Undergraduate Student ☐ Graduate Student ☐ Job Applicant ☐ Former Employee ☐ No current University affiliation ☐ Graduate Assistant ☐ Other	
Ethnicity of Complainant(s): ☐ American Indian or Alaskan Native ☐ White, not of Hispanic Origin ☐ African American and Black, not of Hispanic Origin ☐ Asian or Pacific Islander ☐ Latino or Hispanic	

Name of Victim(s) (if other than Complainant)

Department	Gender ☐ Male ☐ Female ☐ Unknown
Status of Victim(s): ☐ Academic or Administrative Officer ☐ Faculty ☐ Professional & Scientific ☐ Merit ☐ Student Employee ☐ Undergraduate Student ☐ Graduate Student ☐ Job Applicant ☐ Former Employee ☐ No current University affiliation ☐ Graduate Assistant ☐ Other	
Ethnicity of Victim(s): ☐ American Indian or Alaskan Native ☐ White, not of Hispanic Origin ☐ African American and Black, not of Hispanic Origin ☐ Asian or Pacific Islander ☐ Latino or Hispanic	

Name of Respondent(s)

Department	Gender ☐ Male ☐ Female ☐ Unknown
Status of Respondent(s): ☐ Academic or Administrative Officer ☐ Faculty ☐ Professional & Scientific ☐ Merit ☐ Student Employee ☐ Undergraduate Student ☐ Graduate Student ☐ Job Applicant ☐ Former Employee ☐ No current University affiliation ☐ Graduate Assistant ☐ Other	
Ethnicity of Respondent(s): ☐ American Indian or Alaskan Native ☐ White, not of Hispanic Origin ☐ African American and Black, not of Hispanic Origin ☐ Asian or Pacific Islander ☐ Latino or Hispanic	

DEFINITION: The University's Policy on Sexual Harassment defines sexual harassment as persistent, repetitive or egregious conduct directed at a specific individual or group of individuals that a reasonable person would interpret, in the full context in which the conduct occurs, as harassment of a sexual nature, when:

FIGURE 2–4 Online form to facilitate filing report of harassment. (cont'd)

For the purposes of this form, "informational complaints" are those handled by department or units outside the Office of Equal Opportunity and Diversity. Pursuant to the UI Policy on Sexual Harassment, any academic or administrative officer who becomes aware of allegations of sexual harassment by any means **must** consult with the Office of Equal Opportunity and Diversity regarding appropriate steps.

Forms of Sexual Harassment: (check all forms of unwelcome behavior that apply)

☐ Verbal Harassment	☐ Physical Harassment	☐ Visual Harassment
☐ comments of a sexual nature ☐ unwelcome advances ☐ derogatory sex based comments ☐ verbal threats ☐ other (explain)	☐ unwelcome contact ☐ physical gestures ☐ exhibitionism ☐ stalking ☐ assault ☐ other (explain)	☐ written ☐ pictures/photos ☐ posters ☐ electronic/computer ☐ other (explain)
☐ Conditioning employment or educational benefits on submitting to sexual requests	☐ retaliation for complaining about sexual harassment	☐ Other (explain)

Please provide summary of the nature of the allegations below (attach additional pages if necessary):

Outcome (check only one):

☐ Founded	☐ unfounded	☐ resolved/negotiated settlement
☐ complaint pending	☐ complaint withdrawn	☐ referred to another office
☐ Other		

Discipline (check all that apply):

☐ apology	☐ educational program	☐ counseling
☐ verbal reprimand	☐ written reprimand	☐ reassignment
☐ suspension	☐ no contact order	☐ termination
☐ other (explain)		
☐ sanctions applied under the Code of Student Life** (explain)		

*To your knowledge, has this complaint been referred to another office? ☐ Yes ☐ No If yes, please indicate where:
☐ Office of Equal Opportunity and Diversity ☐ Office of Student Services ☐ other (specify)

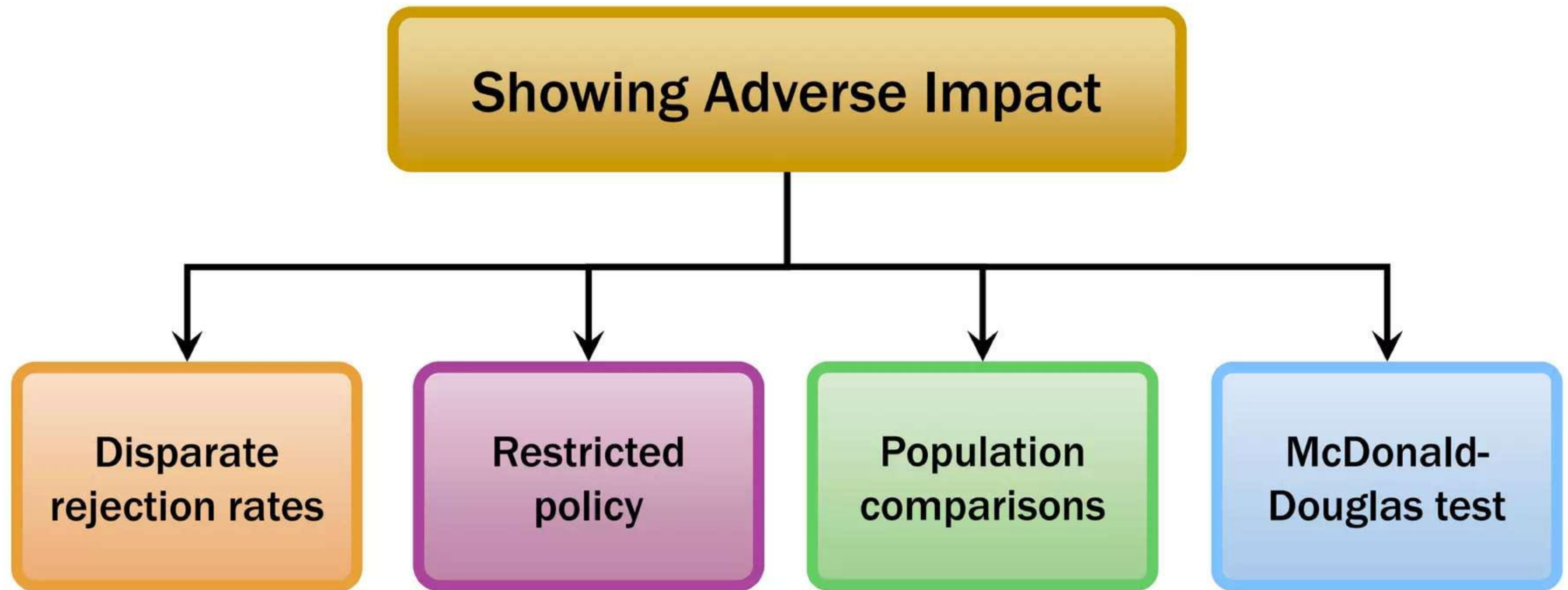
** For Office of Student Services use only: Date report Completed

**Please return this form to the Office of Equal Opportunity and Diversity, 202 Jessup Hall.
 Due to confidentiality considerations, please do not e-mail these forms.
 Thank you for your assistance in resolving the complaint.**

Discrimination Allegation Defenses

- **Disparate Treatment**
 - Is intentional discrimination (different treatment) against protected minority group members because of their minority status characteristic.
- **Disparate Impact**
 - Is the result of an employment practice or policy that has a greater adverse impact (effect) on a protected group under Title VII than on other employees, regardless of intent.
- **Adverse Impact**
 - Is the result of a neutral employment practice that creates an adverse impact—a significant disparity—between the proportion of a protected class and the proportion of the majority class hired from the available labor pool.

Adverse Impact

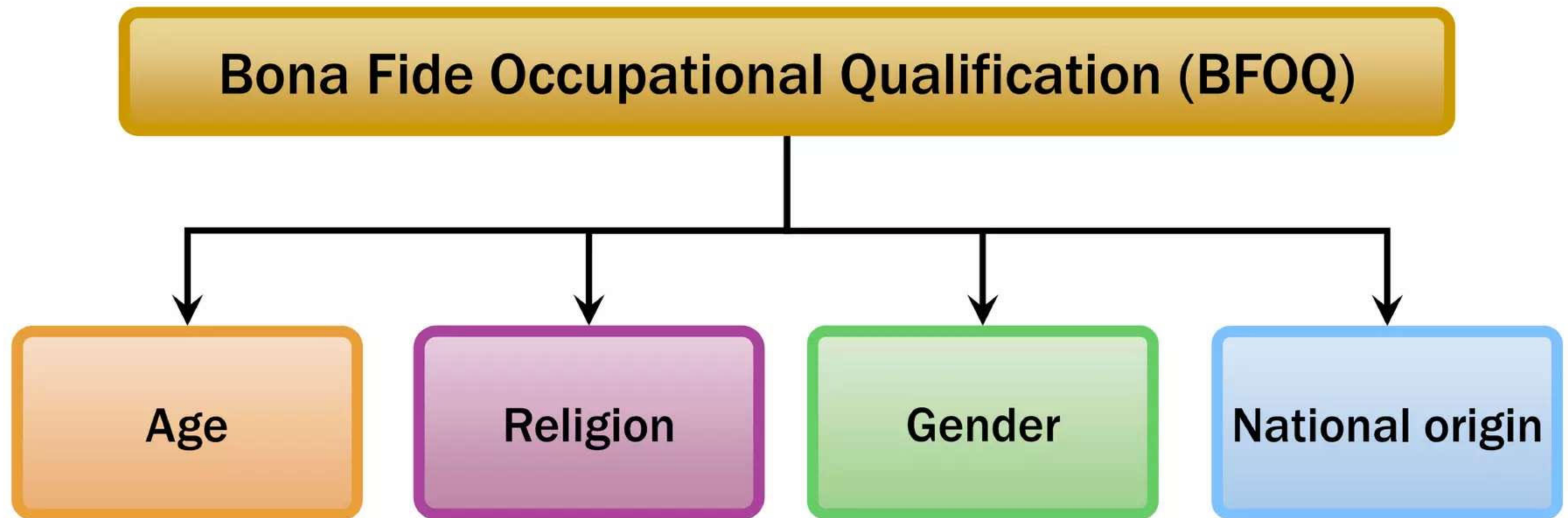


Showing Disparate Treatment

McDonnell-Douglas Test for *Prima Facie* Case

- 1 → The person belongs to a protected class.
- 2 → The person applied and was qualified for the job.
- 3 → The person was rejected despite qualification.
- 4 → The employer continued seeking applications.

Bona Fide Occupational Qualification



Business Necessity

- “Business Necessity”
 - A defense requiring employers to show that there is an overriding business purpose (i.e., “irresistible demand”) for a discriminatory practice.
 - ❖ *Spurlock v. United Airlines*
- Validity
 - The degree to which the test or other employment practice is related to or predicts performance on the job can serve as a business necessity defense.



Other Considerations in Discriminatory Practice Defenses

1. Good intentions are no excuse.
2. Employers cannot hide behind collective bargaining agreements—equal opportunity laws override union contract agreements.
3. Firms should react by agreeing to eliminate an illegal practice and (when required) by compensating the people discriminated against.

Discriminatory Employment Practices

Recruitment

Word of mouth
Misleading
information
Help wanted ads

Selection

Educational requirements
Tests
Preference to relatives
Height, weight, and physical
characteristics
Arrest records
Application forms
Discharge due to
garnishment

Personal Appearance

Dress
Hair
Uniforms

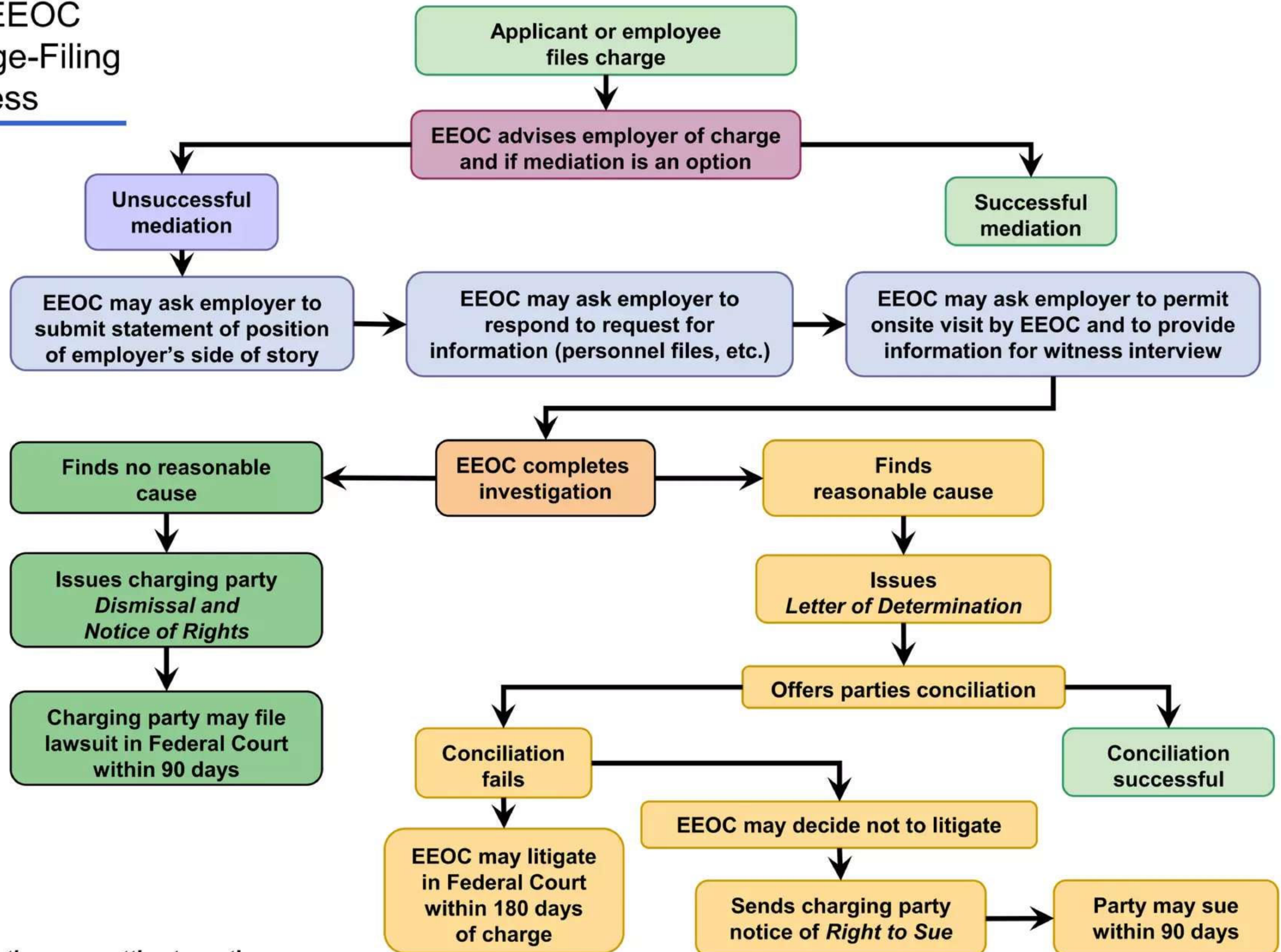
The EEOC Enforcement Process

EEOC Claim and Enforcement Process

-
- 1 → File charge
 - 2 → Charge acceptance
 - 3 → Service of notice of charge
 - 4 → Investigation/fact-finding
 - 5 → Declaration of cause/no cause
 - 6 → Offer of conciliation
 - 7 → Notice to sue

FIGURE 2–5

**The EEOC
Charge-Filing
Process**



Note: Parties may settle at any time.

FIGURE 2–6 Questions to Ask When an Employer Receives
Notice That EEOC Has Filed a Bias Claim

1. Exactly what is the charge and is your company covered by the relevant statutes?
2. What protected group does the employee belong to? Is the EEOC claiming disparate impact or disparate treatment?
3. Are there any obvious bases upon which you can challenge and/or rebut the claim?
4. If it is a sexual harassment claim, are there offensive comments, calendars, posters, screensavers, and so on, on display in the company?
5. Who are the supervisors who actually took the allegedly discriminatory actions and how effective will they be as potential witnesses?

FIGURE 2–7 Management Guidelines for Addressing EEOC Claims

During the EEOC Investigation:

Conduct your own investigation to get the facts.

Ensure that there is information in the EEOC's file *demonstrating lack of merit* of the charge.

Limit the information supplied to only those issues raised in the charge itself.

Get as much information as possible about the *charging party's claim*.

Meet with the employee who made the complaint to clarify all the relevant issues. For example, what happened? Who was involved?

Remember that *the EEOC can only ask employers* to submit documents and ask for the testimony of witnesses under oath. It cannot compel employers.

It may be useful to give the EEOC a *position statement*. It should contain words to the effect that "the company has a policy against discrimination and would not discriminate in the manner charged in the complaint." Support the statement with documentation.

During the Fact-Finding Conference:

Because the only official record is the notes the EEOC investigator takes, *keep your own records*.

Bring an *attorney*.

Make sure you are *fully informed* of the charges and facts of the case.

Before appearing, *witnesses (especially supervisors)* need to be aware of the legal significance of the facts they will present.

During the EEOC Determination and Attempted Conciliation:

If there is a finding of cause, *review it carefully*, and point out inaccuracies in writing to the EEOC.

Use this letter to try again to convince the parties that the charge is *without merit*.

Conciliate prudently. If you have properly investigated and evaluated the case, there may be no real advantage in settling at this stage.

Remember: It is likely (based on the statistics) that *no suit will be filed* by the EEOC.

Addressing EEOC Claims

During the EEO Investigation

- 1 → Conduct own investigation to get facts
- 2 → Limit information supplied to EEOC
- 3 → Meet with employee
- 4 → Be aware of limits of EEOC authority
- 5 → Give EEOC a documented position statement

Addressing EEOC Claims (cont'd)

During the Fact-Finding Conference:

- 1 → Official records
- 2 → Employer's attorney
- 3 → Information
- 4 → Witnesses

During EEOC Determination and Attempted Conciliation:

- 1 → Review carefully
- 2 → Conciliate prudently

Mandatory Arbitration of Discrimination Claims

- *Gilmer v. Interstate/Johnson Lane Corp.*
 - Employers can compel employees to agree to mandatory arbitration of employment-related disputes.
- Recommendations
 - Request party be compelled to arbitrate claim.
 - Insert arbitration clause in employment applications and employee handbooks.
 - Protect arbitration process from appeal.
- Alternative Dispute Resolution (ADR)



Diversity, Equal Employment Opportunity, and Affirmative Action

- **Diversity**

- the variety or multiplicity of demographic features that characterize a company's workforce, particularly in terms of race, sex, culture, national origin, handicap, age, and religion.

- **Equal Employment Opportunity**

- Aims, through legal compliance, to ensure that anyone, regardless of race, color, disability, sex, religion, national origin, or age, has an equal opportunity based on his or her qualifications.

- **Affirmative Action**

- Employers take actions, to comply legally or voluntarily, in the recruitment, hiring, promotion, and compensation of protected classes to eliminate the current effects of past discrimination.

Managing Diversity

Steps in a Diversity Management Program

- 1 → Provide strong leadership
- 2 → Assess the situation
- 3 → Provide diversity training and education
- 4 → Change culture and management systems
- 5 → Evaluate the diversity management program

Is the Diversity Initiative Effective?

- Are there women and minorities reporting directly to senior managers?
- Do women and minorities have a fair share of job assignments that are stepping stones to successful careers in the company?
- Do women and minorities have equal access to international assignments?
- Are female and minority candidates in the company's career development pipeline?
- Are turnover rates for female and minority managers the same or lower than those for white male managers?

FIGURE 2–8 Strategies That Overcome Barriers to Inclusion

At the Personal Level

Inclusive Strategies

- Become aware of prejudice and other barriers to valuing diversity
- Learn about other cultures and groups
- Serve as an example, walk the talk
- Participate in managing diversity

Barriers to Inclusion

- Stereotypes, prejudices
 - Past experiences and influences
 - Stereotyped expectations and perceptions
 - Feelings that tend to separate, divide
-

At the Interpersonal Level

Inclusive Strategies

- Facilitate communication and interactions in ways that value diversity
- Encourage participation
- Share your perspective
- Facilitate unique contributions
- Resolve conflicts in ways that value diversity
- Accept responsibility for developing common ground

Barriers to Inclusion

- Cultural differences
 - Group differences
 - Myths
 - Relationship patterns based on exclusion
-

FIGURE 2–8 Strategies That Overcome Barriers to Inclusion (cont'd)

At the Organizational Level

Inclusive Strategies

- All employees have access to networks and focus groups
 - All employees take a proactive role in managing diversity and creating a more diverse workplace culture
 - All employees are included in the inner circle that contributes to the bottom-line success of the company
 - All employees give feedback to management
 - All employees are encouraged to contribute to change
-

Barriers to Inclusion

- Individuals who get away with discriminating and excluding
- A culture that values or allows exclusion
- Work structures, policies, and practices that discriminate and exclude

Designing an Affirmative Action Program

- Good Faith Effort Strategy
 - Eliminating the present effects of past practices that excluded or underutilized protected groups
 - ❖ Identification through numerical analysis
 - ❖ Proactive elimination of employment barriers
 - ❖ Increased minority or female applicant flow
- Increasing Employee Support for Affirmative Action
 - Transparent selection procedures
 - Communication detailing non-preferential hiring standards
 - Justifications for redressing past discrimination, increasing diversity, and resolving underrepresentation

FIGURE 2–9 Steps in an Affirmative Action Program

1. Issue a written equal employment policy indicating that firm is an equal employment opportunity employer and the employer's commitment to affirmative action.
2. Demonstrate top-management support for the equal employment policy—for instance, appoint a high-ranking EEO administrator.
3. Publicize internally and externally the equal employment policy and affirmative action commitment.
4. Survey current minority and female employment by department and job classification to determine where affirmative action programs are especially desirable.
5. Carefully analyze employer human resources practices to identify and eliminate hidden barriers.
6. Review, develop, and implement specific HR programs to improve female and minority utilization.
7. Use focused recruitment to find qualified applicants from the target group(s).
8. Establish an internal audit and reporting system to monitor and evaluate progress.
9. Develop support for the affirmative action program, inside the company and in the community.

Reverse Discrimination

- Reverse Discrimination

- Discriminate against non-minority applicants and employees by protected-class quota-based systems.

- ❖ *Bakke v. Regents of the University of California*

- *Race cannot be the sole deciding factor in admission decisions.*

- ❖ *Ricci v. DeStefano*

- *Valid test results cannot be ignored solely because higher scoring candidates are members of the majority group.*

KEY TERMS

Title VII of the 1964 Civil Rights Act

Equal Employment Opportunity
Commission (EEOC)

affirmative action

Office of Federal Contract Compliance
Programs (OFCCP)

Equal Pay Act of 1963

Age Discrimination in Employment Act
of 1967 (ADEA)

Vocational Rehabilitation Act of 1973

Pregnancy Discrimination Act (PDA)

uniform guidelines

protected class

Civil Rights Act of 1991 (CRA 1991)

mixed motive case

Americans with Disabilities Act (ADA)

sexual harassment

Federal Violence Against
Women Act of 1994

adverse impact

disparate rejection rates

4/5ths rule

restricted policy

bona fide occupational
qualification (BFOQ)

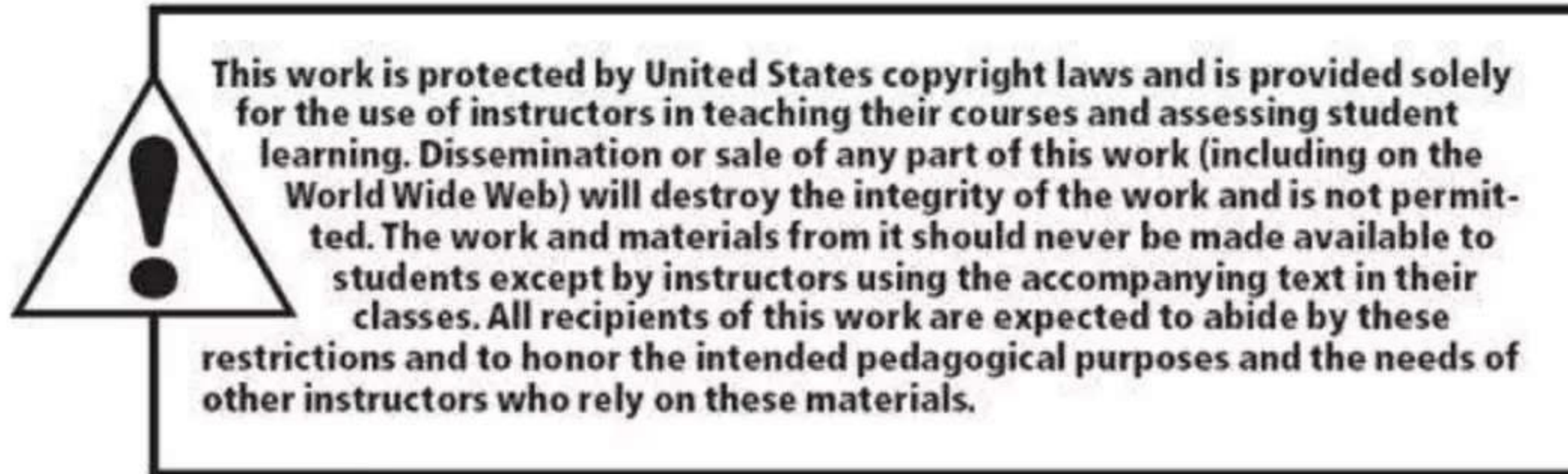
alternative dispute resolution
or ADR program

diversity

managing diversity

good faith effort strategy

reverse discrimination



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